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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

MINISTRY OF DEFENCE

NOTIFICATION

Rawalpindi, the 24th June, 2015

S. R. O. 628 (I)/2015.—In exercise of the powers conferred by clauses 23 and 39 of section 282 of the Cantonments Act, 1924 (II of 1924) read with section 283 thereof, the Cantonment Board, Clifton with previous sanction of Federal Government hereby publish following Bye-laws for regulating of the Advertisements in the Cantonment Board, Clifton, for general information, namely:—

1. **Short title and commencement.**—(1) These bye-laws may be called Clifton Cantonment (Advertisement) Bye-laws, 2015.

(2) They shall come into force at once.

(2349)

Price : Rs. 10.50

2. **Definitions.**—In these Bye-laws, unless there is anything repugnant in the subject or context,—

- (i) **“Act”** means the Cantonments Act, 1924 (II of 1924);
- (ii) **“advertisement”** means any billboard, neon sign, hoarding, sky vision, roof top sign, gantry, pole sign, pylon, banner, poster, letter, model, sign, device or representation supported on or attached to any post, pole, standard, framework or other support wholly or in parts upon or over any land, building or structure or any vehicle, may it be mechanically propelled or manually pulled, which or any part of which shall be visible from some point on any road or in any street or public place including all and every part of any such post, pole, standard, frame work or other support and balloon parachute or other similar employed modes including the electronic and magnetic billboards wholly or in parts for the propose of any publicity or advertisement, announcement, attention or direction. It shall also include any slide, poster, bill, still picture, film, documentary shown in the cinema halls or other public places or public gatherings including the circus, fair, exhibition, etc;
- (iii) **“advertisement charges”** means charges approved by the Board applicable on different types of advertisements;
- (iv) **“advertiser”** means a person or firm engaged or intending to be engaged in activity concerning advertisement;
- (v) **“agreement”** means written agreement concluded between the Board and advertiser;
- (vi) **“approved”** means approved in writing by the Board or Cantonment Executive Officer;
- (vii) **“authorized official”** means any official of the Board who has been authorized by the Board to implement and enforce the provisions of these Bye-laws;
- (viii) **“banner”** means an advertisement material usually hung over roads, streets or its sidelines;
- (xi) **“billboard”** means a flat surface or board, usually outdoors, on which large advertisements or notices are posted;
- (x) **“clear height”** means that vertical distance between the lowest edge of a sign and the level of the ground, footway or roadway immediately below such sign;
- (xi) **“cutout”** means an advertisement in shape of cutout projected model of any make or type;

- (xii) **“Director”** means the Director, Military Lands and Cantonments, Karachi Region;
- (xiii) **“display”** means the display of an advertisement;
- (xiv) **“engineer”** means a person currently registered as such under the Pakistan Engineering Council Act, 1975(V of 1976);
- (xv) **“Executive Officer”** means the Executive Officer of Clifton Cantonment and includes an Additional Executive Officer and Deputy Executive Officer exercising the powers of Executive Officer on his behalf.
- (xvi) **“gantry”** means a framework spanning a road or roads or railroad track or tracks for displaying of advertisement;
- (xvii) **“illuminated advertisement”** means any advertisement which is self-luminous or is illuminated by an outside source of light, but shall not include an illuminated display of goods if such displays of goods merely bearing labels showing the name of articles of its manufacture or of the both or is made by lighting, which is not, in the opinion of the Board more than necessary to make the goods and labels visible at night;
- (xviii) **“mobile publicity”** means advertisements on self-driven vehicles which are normally moving on land or water, including taxis, buses, trains and delivery vehicles;
- (xix) **“permission”** means written permission;
- (xx) **“pole sign”** means any advertisement of any material fixed on poles for advertisement purposes;
- (xxi) **“poster”** means sheet of paper or any other material used to advertise something for display at a public place;
- (xxii) **“prescribed”** means prescribed by the Board under the Act;
- (xxiii) **“President”** means the President of the Board appointed by the Government;
- (xxiv) **“public building and public place”** means a public building designated for public use or public street, bridge, subway, a square, open space, garden and any other enclosed space to which the public has a right of access or which is commonly used by the public;
- (xxv) **“pylon”** means a relatively tall structure at the side of a road, gate, bridge or avenue displaying an advertisement;
- (xxv) **“residential building”** means a building exclusively designed for human habitation and in no case shall include its use in whole or a

part thereof for any other purpose *e.g.* shops, clinics, offices, schools, workshops, store, warehouse or godown or for any other commercial activity;

- (xxvi) “**schedule**” mean a schedule to then Bye-laws;
- (xxvii) “**site**” means a place or location where any kind of advertisement material is displayed or erected or to be displayed or erected;
- (xxviii) “**streamer**” means a banner or strip used for advertisement;
- (xxix) “**structural engineer**” means a qualified structural engineer registered as such with the Pakistan Engineering Council and whose name is listed on the panel of approved structural engineers maintained by the Board;
- (xxx) “**temporary advertisement**” means an advertisement meant for a short period and not permanently fixed and not intended to remain fixed in one position;
- (xxxi) “**wall panel**” means an advertisement placed against a wall of a building or any structure.

3. **Regulation and control of Advertisement.**—No person shall erect or display or cause to erect or display any advertisement without prior approval of the Board through its Executive Officer.

4. **Procedure for seeking permission for advertisement.**—The disposal of advertisement sites as determined by the Board shall preferably be through open public auction subject to these Bye-laws and such terms and conditions as it deems fit or through such policy guidelines of the Federal Government as it may issue. However, the Board may also consider and approve applications from advertisers.

5. **Application for advertisement’s permission.**—(1) Whoever intends to display or erect any advertisement shall make to the Board an application as set out in Schedule-1 and shall be accompanied with the following documents namely:—

- (a) company profile showing financial statement, NTN and work history etc;
- (b) no objection certificate (NOC) from the landowner or the person legally authorized to accord such NOC;
- (c) three copies of plan showing location, style and size of the advertisement, etc;
- (d) design and structure of the advertisement shall be certified by a structural engineer registered with the Board immediately after its erection who shall certify safety aspects of the structure from the

point of view of its resistance to extreme weather and wind conditions and earthquake etc. in relation to the soil bearing capacity and shall comply with the relevant structural design standards in vogue by the Government or Pakistan Engineering Council. Thereafter, the advertiser shall submit such certificate on quarterly basis to the satisfaction of the Board or Executive Officer. The onus of submission of this certificate shall solely lie upon the advertiser. If the advertiser fails to furnish such certificate immediately after erection of the structure, the Board shall be at liberty to remove the advertisement and confiscate the material thereof;

- (e) a declaration from the advertiser that he is not a defaulter or blacklisted by the Board;
- (f) in case the advertisement is to be displayed on a building, the following additional documents shall be provided, namely:—
 - (i) a copy of title deed of the property upon which the proposed advertisement is to be displayed or erected;
 - (ii) dues clearance certificate of the property issued by the Board; and
 - (iii) request for revised assessment of the property by the owner, lessee or sub-lessee *vis-à-vis* revised rental value of the property. The Board shall accordingly revise the revised rental value (ARV) of the property upon which the advertisement is to be displayed; and
- (g) any other information which the Board deems appropriate to require.

(2) Application for an advertisement to be displayed for a period of less than fifteen days shall be presented to the Executive Officer, who may approve or reject the same considering merits of such application.

6. Factors for consideration of application.—While considering an application made under Bye-law 5 for permission of advertisement the Board, in addition to any other relevant factor, legislation, policy and by-laws of the Board, shall have due regard to the following, namely:—

- (a) the compatibility of the proposed advertisement with the environment and aesthetics of the immediate neighbourhood, urban layout and streetscape;
- (b) the probabilities of the proposed advertisement apropos:—
 - (i) threat or danger to any person or property or to obstruction of traffic regulations, including traffic signals or signs;

- (ii) obscurity of any legally displayed advertisement;
- (iii) obscurity of any feature which in opinion of the Board is a natural, architectural or visual line of civic, historical or heritage significance; or
- (iv) objectionable or detrimental impact on the architectural aesthetics of the building upon which the advertisement is to be displayed or any other adjacent property; or
- (v) any conflict with the provisions of these or other By-laws of the Board.

7. **Advertisement Charges.**—(1) Permission to display or erect any advertisement shall be subject to payment of advertisement charges as set out Schedule-II. Charges specified in the Schedule-II shall form the reserved price for auction of respective type of the advertisement.

(2) The Board may grant rights of collection of advertisement charges to a licensee through open public auction subject to such terms and conditions as it deems fit.

8. **Powers of the Board *vis-à-vis* application for advertisement.**—The Board may refuse or accept any application for advertisement in its original or any modified form as it deems appropriate.

9. **Review.**—Any person dissatisfied with the decision of the Board, may file for review an application with Executive Officer within seven days of such decision who shall seek review by the Board.

10. **Appeal.**—If an advertiser remains aggrieved after review by the Board, he may file an appeal before the Director, whose decision shall be final and binding.

11. **Terms and conditions of advertisement.**—The following shall be the terms and conditions of advertisement, namely:—

- (a) permission for display of an advertisement shall ordinarily be given for one year and it shall be terminable at two months' notice for specific reasons to be conveyed in writing. In the event of default in dues or violation of any of the terms of permission, the same shall be terminable after a notice of seven days;
- (b) on expiry of one year, the Board may consider extending the permission for another year subject to such terms and conditions as it deems fit. The Board may allow two such extensions in total after the first approval and on expiry of third year from the initial approval, the site may be considered for a fresh permission subject to these By-laws;

- (c) no obscene, offensive or indecent material shall be displayed. In case the displayed material is objectionable from point of view of the Government or Board, the advertiser shall be liable to remove such advertisement on direction of the Executive Officer. No compensation shall be permissible in such an eventuality. Non-compliance on the part of an advertiser in such a situation may make the permission invalid and may lead to punitive action, which may include removal of advertisement at the risk and cost of the advertiser and his blacklisting;
- (d) the Board shall determine to specify suitable site and location for the purpose of the display and erection of advertisement;
- (e) the Board may adopt a masterplan for advertisement sites and may specify kind, design, style, structure and material as it deems fit. The advertisers shall abide by such a masterplan in all respects;
- (f) subletting to unauthorized person of advertisements rights may be allowed only with prior approval of the Board subject to payment of such transfer fee as may be fixed by the Board; and
- (g) advertisers shall be responsible for maintenance and aesthetic upkeep of the advertisement materials, structures and its surrounding areas with the best possible civic sense and obligations towards the cityscape.

12. **Categories of advertisement.**—The Board may adopt and specify various categories of advertisements such as billboard, roof top signs, gantries, pedestrian bridges panels, pylons, pole signs, wall panels, posters, banners, balloon advertisement, moving publicity, private direction boards and project boards etc. and may fix permissible styles and sizes for each category with specific slabs of applicable advertisement charges as set out in Schedule-II.

13. **Special powers of Board.**—The Board may in the public interest require an advertiser to display certain messages for public service or national cause etc. and in that case the advertiser shall be liable to comply with the instructions, provided that such requirement shall not exceed twenty days in a year and seven days in a row. The Board shall not offer any compensation for such activity.

14. **Indemnity.**—The advertiser shall indemnify all threats and damages to the life and property that may arise due to the advertisement material in any way. The advertiser shall be required to submit an undertaking in this regard on stamp paper of appropriate value or in the manner as prescribed by the Board.

15. **Offences and penalties.**—Any person who contravenes any of the provisions of these Bye-laws shall be punishable with fine which may extend to one hundred rupees and, in the case of a continuing contravention, with an additional fine which may extend to twenty rupees for every day during which such contravention continues after conviction for the first such contravention.

Schedule-I
[See bye-law 5]

**APPLICATION FOR APPROVAL OF DISPLAY OR ERECTION OF AN
ADVERTISEMENT**

To,

The Cantonment Board Clifton,
Karachi.

In pursuance of the Clifton Cantonment (Advertisement) Bye-Laws, 2015, I/we hereby apply for permission to display/erect advertisement at location/ point _____ the area Clifton.

2. Necessary particulars for the said permission are given below:—

- (i) No Objection Certificate from the landowner/lessee or the person legally authorized to accord such NOC.
- (ii) Three copies of plan showing the location, style and size of the advertisement/hording etc.
- (iii) Certificate from Structural Engineer.
- (iv) A declaration from the advertiser that he is not declared defaulter or blacklisted by the Board.
- (v) Copy of the title deed of the property upon which the proposed advertisement is to be displayed or erected, if applicable;

3. I/we undertake that I/we shall be personally held responsible for any violation of the said Bye-laws and other conditions, if any, attached to the permission.

Signature _____

Name _____

Address: _____

Dated _____

Schedule-II

[See bye-laws 7, 12]

Categorization of Advertisements
(Billboards and Pylons)

Category 'A+' (Rs. 3,450 per sq ft) For the areas of	Category 'A' (Rs. 2,875 per sq ft)	Category 'B' (Rs. 2,300 per sq ft)	Category 'C' (Rs. 1,725 per sq ft)
(1)	(2)	(3)	(4)
1. Zamzama Commercial Area 2. Submarine Chowrangi 3. Hyper Chowrangi 4. Sundial Chowk (Sunset Boulevard) 5. Khayabane Ittehad 6. Shahbaz Commercial Area	1. Khayabane Iqbal 2. Khaliq-uz-Zaman Road 3. Khayabane Jami 4. 26th Street (From Shamsheer to Tauheed Commercial Area) 5. Khayabane Shamsheer Extension. 6. Beach Avenue 7. Commercial; Areas 'A' and 'B' 8. Khadda Market 9. Zamzama Boulevard 10. Bokhari Commercial Area 11. QT. Signal Korangi Road 12. Sunset Chowk Korangi Road	1. Korangi Road (Less QT Signal and Sunset Chowk) 2. Khayabane Muhafiz 3. Khayabane Shahbaz 4. Sunset Boulevard 5. Khayabane Shaheen (except Zamzama Boulevard) 6. Khayabane Bokhari 7. 26th Street (Before Shamsheer Chowrangi) 8. Badar Commercial Area 9. Saba Commercial Area 10. Rahat Commercial Area	1. Khayabane Shujaat 2. Saba Avenue 3. Akhtar Colony facing Korangi Road 4. KPT Flyover 5. Nishat Commercial Area 6. Sehar Commercial Area 7. Phase-II Extension

Categorization of Advertisements
(Gantry)

Category 'A+' (Rs. 4,500 per sq ft) For the areas of	Category 'A' (Rs. 4,000 per sq ft) For the areas of	Category 'B' (Rs. 3,500 per sq ft) For the areas of	Category 'C' (Rs. 3,000 per sq ft) For the areas of
(1)	(2)	(3)	(4)
1. Zamzama Commercial Area	1. Khayabane Iqbal	1. Korangi Road (Less. QT Signal and Sunset Chowk)	1. Khayabane Shujaat
2. Submarine Chowrangi	2. Khaliq-uz-Zaman Road	2. Khayabane Muhafiz	2. Saba Avenue
3. Hyper Chowrangi	3. Khayabane Jami	3. Khayabane Shahbaz	3. Akhtar Colony facing Korangi Road
4. Sundial Chowk (Sunset Boulevard)	4. 26th Street (From Shamsheer to Tauheed Commercial Area)	4. Sunset Boulevard	4. KPT Flyover
5. Khayabane Ittehad	5. Khayabane Shamsheer Extension.	5. Khayabane Shaheen (except Zamzama Boulevard)	5. Nishat Commercial Area
6. Shahbaz Commercial Area	6. Beach Avenue	6. Khayabane Bokhari	6. Sehar Commercial Area
	7. Commercial; Areas 'A' and 'B'	7. 26th Street (Before Shamsheer Chowrangi)	7. Phase-II Extension
	8. Khadda Market	8. Badar Commercial Area	
	9. Zamzama Boulevard	9. Saba Commercial Area	
	10. Bokhari Commercial Area	10. Rahat Commercial Area	
	11. QT Signal Korangi Road		
	12. Sunset Chowk Korangi Road		

Miscellaneous Advertisements

Categories (1)	Charges Per Square feet. (2)
Pedestrian Bridge Panels	Rs. 2500
Pole Sign	Rs. 500 (for all areas except Seaview Road) Rs. 250 (for Seaview Road)
Direction Sign /Wall Directions Sign	Rs. 1150
Hoarding (Private Sites)	Rs. 1438
LED/ LCD Screen	Rs.2500
Wall Panel	Rs.2500
Banners / Streamers (Banners of cloth not permissible)	Rs. 200 per streamer per day
Wall Mounted Board	Rs.1150
Moving Publicity:- Cycle / Tri Cycle Motor Cycle Mid size Pickup Large Pick up Truck Float	Rs.700 Per day Rs.1200 Per day Rs.1500 Per day Rs.2000 Per day Rs.3000 Per day Rs.5000 Per day
Delivery Vans:- Cycle / Tri Cycle Motor Cycle Mid size Pickup Large Pick up Truck	Rs.500 Per Month Rs.1000 Per Month Rs.1500 Per Month Rs.2000 Per Month Rs.3000 Per Month
Seller / Publicity Van (Branding publicity of Company for temporary basis)	Rs.1150 per day and branding Rs.25 per sq ft per day
Cut Out Signs	Rs.50 per sq ft per day
Standee	Rs.10 per sq ft per day
Pamphlet / Magazine	Rs.2000 per day
Balloon	Rs.5000 per day and branding Rs.25 per sq ft per day
Publicity Stall / Kiosk	Rs.5000 per day and branding Rs.25 per sq ft per day

[No. 38/2/P&MA/ML&C/2015/4/9/D-6(A-VI)/2015.]

AZEEM SARWAR,
Section Officer.

